DE-305

ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NO.:
After recording, return to:
NAME:
FIRM NAME:
STREET ADDRESS:
CITY, STATE, ZIP CODE:
TELEPHONE NO.: FAX NO.:
EMAIL ADDRESS:
ATTORNEY FOR *(name):*

SUPERIOR COURT OF CALIFORNIA, COUNTY OF
STREET ADDRESS:
MAILING ADDRESS:
CITY AND ZIP CODE:
BRANCH NAME:

FOR RECORDER'S USE ONLY

ESTATE OF *(name):*

DECEDENT

CASE NUMBER:

AFFIDAVIT RE REAL PROPERTY OF SMALL VALUE

FOR COURT USE ONLY

1. The decedent *(name):*
   died on *(date):*
   at *(city, state):*
2. At least **six months** have passed since the decedent's death. *(Attach a certified copy of the decedent's death certificate.)*
3. a. ☐ The decedent was domiciled in this county at the time of death.
   b. ☐ The decedent was **not** domiciled in California at the time of death, but the decedent died owning real property in this county.
4. The **gross value,** on the date of the decedent's death, of all real property in the decedent's estate located in California, as shown by the attached inventory and appraisal—excluding the real property described in Probate Code section 13050—did not exceed *(check one):*
   a. ☐ **$55,425** *(decedent died before April 1, 2022).*
   b. ☐ **$61,500** *(decedent died on or after April 1, 2022, and before April 1, 2025. Form DE-300 is attached as required by law).*
   c. ☐ **$69,625** *(decedent died on or after April 1, 2025. Form DE-300 is attached as required by law).*
5. a. The **legal description** and the Assessor's Parcel Number of the particular item of the decedent's real property claimed by the declarant(s) are provided on an attached page titled Attachment 5a [legal description of real property]. *(Copy legal description **exactly** from deed or other legal instrument.)*
   b. The decedent's interest in this real property is *(specify):*
6. Name and address of each guardian or conservator of the decedent's estate at time of death: ☐ none ☐ are as follows:*****

   Name | Address

   ☐ Additional guardians or conservators are identified in Attachment 6.
   *(***** You must deliver a copy of this affidavit and all attachments in any manner provided in Probate Code section 1215 to each guardian or conservator named above. You may use Judicial Council form POS-030 for proof of mailing, form POS-020 for proof of personal delivery, or form POS-050 for proof of electronic delivery.)*
7. An inventory and appraisal of all of the decedent's **real property** in California is attached. The appraisal was made by a probate referee appointed by the State Controller for the county in which the property is located. *(You must prepare the inventory on Judicial Council forms DE-160 and DE-161. You may select any probate referee appointed for the county to perform the appraisal. A list of all probate referees, shown by county, is available at www.sco.ca.gov/eo_probate_contact.html. Each court also has a list of referees appointed for its county. Check with the probate referee or consult an attorney if you need help preparing the inventory.)*
8. a. ☐ No proceeding for administration of decedent's estate is now being or has been conducted in California.
   b. ☐ The decedent's personal representative has consented in writing to the use of the procedure provided by Probate Code section 13200 et seq. *(Attach a copy of the consent and a copy of the personal representative's letters of administration.)*

ESTATE OF *(name)*: DECEDENT	CASE NUMBER:

9. Funeral expenses, expenses of last illness, and all known unsecured debts of the decedent have been paid. ***(NOTE:** You may be personally liable for decedent's unsecured debts up to the fair market value of the real property and any income you receive from it.)*

10. The declarant—or a trust or other entity, on behalf of which the declarant is acting—is, or all declarants together constitute, the successor of the decedent (as defined in Probate Code section 13006) to the decedent's interest in the property described in item 5, and no other person or entity has a superior right to the decedent's interest in that property, because the declarant is:
    a. ☐ ***(if decedent left a will)*** the sole beneficiary or all the beneficiaries who succeeded to the property under the decedent's will. *(Attach a copy of the will.)*
    b. ☐ ***(if decedent died without a will)*** the sole person or all the persons who succeeded to the property under Probate Code sections 6401 and 6402.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

(TYPE OR PRINT NAME)*

▶ (SIGNATURE OF DECLARANT)

Date:

(TYPE OR PRINT NAME)*

▶ (SIGNATURE OF DECLARANT)

☐ SIGNATURES OF ADDITIONAL DECLARANTS ATTACHED

*** A declarant claiming on behalf of a trust or other entity should also state the name of the entity that is a beneficiary under the decedent's will and declarant's capacity to sign on behalf of the entity (trustee, chief executive officer, etc.).**

CERTIFICATE OF ACKNOWLEDGMENT

(NOTE: Do not use a small strip of paper to attach an additional certificate of acknowledgment to this page. If you need one or more additional certificates of acknowledgment, attach each one to this form on a separate, full-sized 8-1/2 by 11-inch page.)

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

STATE OF CALIFORNIA, COUNTY OF *(specify):*

On *(date):* , before me *(name and title):*

personally appeared *(name of each):*

who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

(SIGNATURE OF NOTARY PUBLIC)

(NOTARY SEAL)

(SEAL)

CLERK'S CERTIFICATE

I certify that the foregoing, including any attached certificates of acknowledgment and any attached legal description of the property (but excluding other attachments), is a true and correct copy of the original affidavit on file in my office. *(Certified copies of this affidavit do not include the (1) death certificate, (2) will, or (3) inventory and appraisal. (See Prob. Code, § 13202.))*

Date: Clerk, by _____ , Deputy

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